

The Disaster Management Authority (National Disaster Response Force) Rules, 2008

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The Disaster Management Authority (National Disaster Response Force) Rules, 2008

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The Disaster Management Authority (National Disaster Response Force) Rules, 2008

Rule THE-DISASTER-MANAGEMENT-AUTHORITY-NATIONAL-DISASTER-RESPONSE-FORCE-RULES-2008 of 2008

Published on 13 February 2008

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The Disaster Management Authority (National Disaster Response Force) Rules, 2008

Published vide Notification G.S.R. 87(E), dated 13.2.2008 and published in the Gazette of India, Extraordinary, Part 2, Section 3(i), Sl. No. 68, dated 14.2.2008.

7.

/440

G.S.R. 87(E), dated 13.2.2008 - In exercise of the powers conferred by clause (f) of sub-section (2) read with sub-section (1) of section 75 of the Disaster Management Act, 2005 (53 of 2005), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement

(1)

These rules may be called The Disaster Management (National Disaster Response Force) Rules, 2008.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Disaster Management Act, 2005 (53 of 2005);

(b)

"battalion" means a unit of the Central Para Military Force earmarked by the Force as a battalion;

(c)

"Central Para Military Forces" means the Central Para Military Forces constituted under,-

(i)

the Central Reserve Police Force Act, 1949 (

66 of 1949

);

(ii)

the Border Security Force Act, 1968 (

47 of 1968

);

(iii)

the Central Industrial Security Force Act, 1968 (50 of 1968); [* * *]

[Omitted word "or" by Notification No. G.S.R. 857 (E) dated 11.12.2008 (w.e.f. 14.2.2008)]

(iv)

the Indo-Tibetan Border Police Force Act, 1992 (35 of 1992);[or]

[Inserted Notification No. G.S.R. 857 (E) dated 11.12.2008 (w.e.f. 14.2.2008)]

(v)

[the Sashastra Seema Bal Act, 2007 (

53 of 2007

)]

[Inserted Notification No. G.S.R. 857 (E) dated 11.12.2008 (w.e.f. 14.2.2008)]

(d)

"National Authority" means the National Disaster Management Authority established under sub-section (1) of section 3 of the Act;

(e)

"National Disaster Response Force" means the National Disaster Response Force constituted under sub-section (1) of section 44 of the Act.

(2)

Words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Constitution of Force

(1)

The personnel deputed from the Central Para Military Forces by the Central Government in the Ministry of Home Affairs vide Order Number 1/15/2002-DM-I/NDM-III (A), dated the 19th January, 2006 shall be deemed to have been deputed in the National Disaster Response Force under these rules.

(2)

The Central Government may, in consultation with the National Authority, depute, as and when required, such member of personnel from the Central Para Military Forces to the National Disaster Response Force for the purposes of disaster management, having skills, capabilities and qualifications and experience of handling disaster and their management and such other technical qualifications as prescribed by the Central Government in this behalf:

Provided that in the case of non-availability of personnel with the required technical qualification and experience, the Central Government may appoint such personnel through deputation from other organisations or on contract basis.

(3)

The personnel of a battalion deputed to the National Disaster Response Force under these rules shall remain ordinarily in such battalion for a period of five years:

Provided that no more than twenty-five per cent of the force may be replaced in one year.

4.

Superintendence, direction and control of Force

(1)

The general superintendence, direction and control of the National Disaster Response Force shall vest in, and be exercised by, the National Authority.

(2)

The command and supervision of the National Disaster Response Force shall vest in the Director General of the National Disaster Response Force to be appointed by the Central Government.

(3)

The Director General, National Disaster Response Force shall report to, and be under the administrative control of, the Vice-Chairman of the National Authority.

5.

The responsibility, training, skill, duties, etc

- The National Disaster Response Force shall be trained and equipped as a specialised force to carry out the disaster management related tasks and for dealing with threatening disaster situations or disaster.

6.

Conditions of service

(1)

The terms and conditions of service including disciplinary powers relating to the personnel deputed from the Central Para Military Forces to the National Disaster Response Force shall continue to be regulated by the provisions of the Act and the rules applicable to the respective Force and its services.

(2)

The terms and conditions of service including disciplinary powers relating to the personnel appointed under the proviso to sub-rule (2) of rule 3 shall be governed by such rules as are applicable to the officers and employees of the Central Government of the same grade.

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